

Re: DPE Meeting Follow up information : SFET

1 message

Tammy Buchanan <tammy.buchanan@dataprotection.education>

24 May 2023 at 09:40

To: Claire Booth <CBooth@sfet.org.uk>

Cc: Claire Buckton <CBuckton@sfet.org.uk>, Claire Harnden <CHarnden@sfet.org.uk>, Andrew Carter <ACarter@sfet.org.uk>

Hi Claire,

Just to advise, I got the information about the CPOMS redaction tool from the ticket that Lesley raised (ticket #6139):

<https://dataprotection.education/tools/add-ticket/view-ticket/6139-sar>

I hope that helps,

Many thanks,
Tammy

On Tue, 23 May 2023 at 18:41, Claire Booth <CBooth@sfet.org.uk> wrote:

Hello Tammy,

Thank you for your email.

I will contact Lesley to check what redaction tool she was referring to as I thought it was the DPE one from your portal, rather than the redaction tool within CPOMS.

I will come back to you regarding a demonstration of your redaction tool via an online training session.

Kind regards

Claire

Claire Booth

Finance and Business Director

South Farnham Educational Trust | Menin Way | Farnham | Surrey | GU9 8DY

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From: Tammy Buchanan <tammy.buchanan@dataprotection.education>**Sent:** Tuesday, May 23, 2023 4:06 PM**To:** Claire Booth <CBooth@sfet.org.uk>**Cc:** Claire Buckton <CBuckton@sfet.org.uk>; Claire Harnden <CHarnden@sfet.org.uk>; Andrew Carter <ACarter@sfet.org.uk>**Subject:** Re: DPE Meeting Follow up information : SFET

Hi Claire,

Thank you. I can confirm that I have been in contact with Claire Buckton about the visits.

Just to advise - James has emailed Andrew directly given he ran the meeting and voiced some concerns.

I wanted to follow up with some more information about redaction and Subject Access Requests as you had asked for further guidance and support. There is a lot of information on the Knowledge Bank for these and other subjects. There is a Redaction Best Practice Library and Redaction Guidelines: <https://dataprotection.education/best-practice-update/340-redaction-guidelines-updated> and a Subject Access Request Library: <https://dataprotection.education/best-practice-library/best-practice/subject-access-requests>

All the libraries give detailed guidance and best practice. There is also a very quick training nugget (5-10 minutes) that would be useful for any staff dealing with a SAR: <https://dataprotection.education/courses-heading/subject-access-requests>

I also spoke to an IT provider of two local authorities who provides IT support for a number of schools about the use of the CPOMS redacting tool and he confirmed that it's behaviour is not exactly the right tool for a subject access request. We provide a free redaction tool as part of the Knowledge Bank, so would advise using that going forward.

If a further demo is needed with the Knowledge Bank, then please let me know and I can organise this for you - the head teachers did have these booked but they were cancelled. Properly viewing what is in the Knowledge Bank would help in supporting them so they can have an understanding of what support and guidance is available to them as part of the service and so know where to go for help.

Details from the Making the Rounds walk around can be found here: <https://dataprotection.education/courses-heading/making-the-rounds-log/add-log?id=94506> although normally trusts have an overview at the end of a round of visits, or a general report which I can organise.

If you have any further questions please do not hesitate to contact me. As advised yesterday, if it is something urgent I would advise raising a ticket or emailing dpo@dataprotection.education so another member of the team can get back to you if I am out on site.

Many thanks,

Tammy Buchanan

Data Protection Consultant

BSc(Hons) Computer Science

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On Mon, 22 May 2023 at 18:10, Claire Booth <CBooth@sfet.org.uk> wrote:

Hello Tammy,

Thank you for coming into school earlier today and for your feedback regarding our comments raised.

We are happy for you to continue with the remainder of your visits and Claire Buckton will also be present to show you round with the Head and to receive your feedback to ensure we co-ordinate the most relevant training across the Trust.

I will wait to hear directly from James in due course.

Kind regards

Claire

Claire Booth

Finance and Business Director

[South Farnham Educational Trust | Menin Way | Farnham | Surrey | GU9 8DY](#)

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From: Tammy Buchanan <tammy.buchanan@dataprotection.education>
Sent: 22 May 2023 17:03
To: Claire Booth <CBooth@sfet.org.uk>; Claire Buckton <CBuckton@sfet.org.uk>; Claire Harnden <CHarnden@sfet.org.uk>; Andrew Carter <ACarter@sfet.org.uk>
Subject: DPE Meeting Follow up information : SFET

Hello all,

Thank you for your time today. It was really appreciated. Please thank Ester for showing me around her school.

Following our conversations this morning, please find below the information discussed:

Staff Knowledge Bank View:

Everything that a staff member will see:

On the Dashboard:

- the e-learning that they are enrolled in or completed
- Any to-do's they have been set
- Training certificates
- Assigned documents (if there are any)
- Breach log - which they can click on and add a data breach
- Checklist items

They would also have access to:

- The Best Practice Libraries
- All training courses
- News items
- Resources such as posters, guidance documents and policies, user guides

Training

Some key training points for data protection are:

- you should have an all-staff data protection and information governance training programme
- it should include induction and refresher training for all staff
- specialised roles or functions with key data protection responsibilities should receive additional training beyond the basic level
- you should regularly raise awareness across your organisation of data protection and information governance - you should make it easy for staff to access relevant material

The details from the ICO about how often staff should receive their training:

New starters need data protection training within a month, and before accessing any personal data. You should provide refresher training to all workers at regular intervals. **Ideally you should provide it annually, but it should not exceed two years.** If anyone needs additional support – for example, if you assess their knowledge and they get a low score - provide further training. Don't wait until the next scheduled refresher training.

Full details here: <https://ico.org.uk/for-organisations/sme-web-hub/checklists/do-you-know-what-to-include-in-your-data-protection-training/>

CPOMS/Safeguarding data:

CPOMS is a tool for collecting safeguarding data, however, just because something resides in a particular file or system, doesn't make it exempt. I spoke to James about the statement from Satswana that you gave to me and he responded:

The exemption cited is accurate, but it does not always apply just because something is "safeguarding". No exemption can be applied as an umbrella, each case must be looked at individually and legitimate harm must be identified. We can sometimes identify risk, but ultimately the DSL in the school may have more information and first-hand knowledge of a particular situation.

For example, in a safeguarding file there is information that the family is supported by a social worker because they have been adopted and the child was previously looked after by the local authority. This information would rightly be in CPOMS, but unlikely to cause any harm to the adoptive parents if requested.

In relation to child abuse data, again, this may also be related to the reason why the child was placed in care. The question is whether the disclosure would cause harm to the individual to which it is being disclosed. An adoptive family may know some history, and the disclosure may not result in the likelihood of harm. But I would always refer this back to the school DSL for an answer as they are far more likely to know the family and the relationship.

Completely different if the child has made an allegation about a family member to a member of staff.

CPOMS can be used in different ways in different schools, so cannot apply a blanket refusal to a request to view CPOMS.

Service - I have spoken to James about the meeting today, the concerns raised and what is included in the SLA. He will contact you to discuss further.

I will send a separate email about the data walk (making the rounds).

I look forward to hearing from you regarding the remaining visits. Just to advise the next one is due on the 5th June - as this is the first day back after half term, if you could please advise me before this Friday that would be really helpful.

I was also going to speak to you about the ticket #6176 that you have open regarding staff from the Great Bookham School being able to see the trust course information. My last update on the 12th May asked who those members of staff are. As everyone has an @sfet.org.uk email address, we as a company, cannot determine which employee should be under which school, so need you to please identify them :

<https://dataprotection.education/tools/add-ticket/view-ticket/6176-dashboard>

I apologise if I have missed anything from the conversation, so please advise me if that is the case.

If you have any further queries, please do not hesitate to contact me using the contact details below, alternatively, please email dpo@dataprotection.education if it is an urgent request, or log a ticket via the Knowledge Bank. Details of how to contact us for support, subject access requests, data breaches and FOI's: <https://dataprotection.education/best-practice-update/315-how-to-contact-us-for-support>

Many thanks,

Tammy Buchanan

Data Protection Consultant

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